

22NWCV01287 22NWCV01287

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Case Number: 22NWCV01287 Hearing Date: September 2, 2026 Dept: C

MARTINEZ v. AMERICAN HONDA MOTOR
CO., INC.

CASE NO.: 22NWCV01287

HEARING: 9/2/26
at 9:30AM

#13

TENTATIVE
RULING

Plaintiff YOLISMA

MARTINEZ's Motion for Attorney's fees is GRANTED in part. Plaintiff is entitled to recover \$150,474 in attorney's fees.

Moving Party to give
NOTICE.

Plaintiff YOLISMA MARTINEZ (Plaintiff)
moves this Court for an award of attorney's fees pursuant to Civil Code § 1794(d).

Background

This
is a lemon law action. On November 10, 2022, Plaintiff sued defendant AMERICAN
HONDA MOTOR CO., INC. On February 3, 2026, the jury returned a verdict in
Plaintiff's favor for restitution and maximum civil penalties. (RK Dec., ¶ 12.)

Pursuant to the Song-Beverly Act, Plaintiff as the prevailing party is entitled to attorney's fees. (Ibid.)

LEGAL STANDARD

A prevailing party

is entitled to recover costs as a matter of right. (Code Civ. Proc., § 1032, subd. (a)(4), (b).) Attorney's fees are recoverable as costs when authorized by contract, statute, or law. (Code Civ. Proc., § 1033.5, subd. (a)(10).) "A notice of motion to claim attorney's fees for services up to and including the rendition of judgment in the trial court . . . must be served and filed within the time for filing a notice of appeal under . . . rules 8.822 and 8.823 in a limited civil case." (Cal. Rules of Court, rule 3.1702, subd. (b)(1).) In a limited civil case, a notice of appeal must be filed on or before the earliest of 30 days after service of a document entitled "Notice of Entry" of judgment or 90 days after the entry of judgment. (Cal. Rules of Court, rule 8.822, subd. (a)(1).)

The fee

setting inquiry in California begins with the "lodestar" method, i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. A computation of time spent on a case and the reasonable value of that time is fundamental to a determination of an appropriate attorneys' fee award. The lodestar figure may then be adjusted, based on factors specific to the case, in order to fix the fee at the fair market value for the legal services provided. (Serrano v. Priest (1977) 20 Cal.3d 25, 49.) Such an approach anchors the trial court's analysis to an objective determination of the value of the attorney's services, ensuring that the amount awarded is not arbitrary. (Id., at p. 48, fn. 23.) After the trial court has performed the lodestar calculations, it shall consider whether the total award so calculated under all of the circumstances of the case is more than a reasonable amount and, if so, shall reduce the section 1717 award so that it is a reasonable figure. (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1095-1096.)

Discussion

I.

Attorney's Fees

As

the prevailing party in this action and pursuant to the Song-Beverly Act and the parties' settlement agreement, Plaintiff is entitled to attorney's fees and costs pursuant to CCP § 1032(a)(4) and CCP § 1794(d). However, under the Song-Beverly Act provision that governs award of attorney's fees, if the time expended or the charge for time expended is unreasonable, then the trial court must take that into account and award attorney's fees in a lesser amount. (McKenzie v. Ford Motor Co. (2015) 238 Cal.App.4th 695, 703.)

Plaintiff's Motion is timely and it is

undisputed that Plaintiff is the prevailing party. Plaintiff seeks \$169,136.00 in attorney's fees and \$50,740.80 under the lodestar multiplier/ enhancement of 1.3x for contingent risk pursuant to CCP § 1794(d). The total amount requested in fees is \$219,876.80.

Filed concurrently with the attorney's fees

motion, Attorney Roger Kirnos provided a declaration setting forth his background and hourly billing rate, as well as an attached exhibit with an itemized description of the time spent and tasks undertaken in relation to this action and the instant motion for attorney's fees and costs. (Karnos Decl., ¶¶ 23-28.)

Counsel's fees and experience are summarized as follows

Name

Position

Hourly Rate

Angelica Zamudio

Law Clerk/ Legal Assistant

\$175/hour; \$295/hour

Chris Swanson

Attorney

\$575/hour

Caitlin Rice

Attorney

\$375/hour; \$425/hour

Deepak Devabose

Attorney

\$550/hour; \$450/hour;

Elvira Kamosko

Attorney

\$350/hour; \$375/hour

Kirk Donnelly

Attorney

\$500/hour

Keishunn Johnson

Attorney

\$375.00/hour

Sundee Samra

Attorney

\$500/hour

Scot Wilson

Attorney

\$645/hour; \$675/hour

Timothy Lupinek

Attorney

\$415/hour; \$450/hour; \$500/hour; \$525.00/ hour

Thach Tran

Attorney

\$395/hour; \$425/hour

Zachary Powell

Attorney

\$425/hour

(Kirnos Decl., Exh. A.)

A.

Attorney Billing Rate

The Court finds the billing rate for the attorneys at Knight Law Group, LLP are reasonable based on their experience, practice area, and location. (See *Save Our Uniquely Rural Community Environment v. County of San Bernardino* (2015) 235 Cal.App.4th 1179 [a reasonable hourly rate used for the lodestar calculation of attorney's fees is that prevailing in the community for similar work.]) Based on counsel's declarations and the Court's own experience with the billing rates of Los Angeles-area counsel in similar lemon law cases, the Court finds Plaintiff's counsel's and paralegal's rates are reasonable.

B.

Hours Reasonably Spent

The Court may adjust the award for excessive or unreasonable billing. (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1095-1096.) The Court agrees with Defendant that certain entries including for the fraudulent concealment cause of action, drafting requests that are minimally edited templates or review of routine documents are unreasonable, duplicative, and/or excessive.

Excessive Billing/
Templated Work Product:

o Defendant disputes entries totaling 88.8 hours as improperly excessive and duplicative work. For each of the disputed excessive entries, Defendant argues that "Plaintiff's counsel has filed many templated complaints against Defendant. Plaintiff's counsel claims to be highly skilled. Thus length of time to review is highly inflated." (Shah Decl., Exh. A.) The Court finds the following entries excessive: .

§ 9/11/2023 Drafted

Initial MC letter re Disco Resps set 1 AZ 1 at \$175.00. Total \$175.00

§ 10/10/2023 Drafted 2nd

MC letter re Disco Resps AZ 0.6 at \$175.00. Total \$105.00

§ 12/13/2023 Started

drafting MTC RFP AZ 1.2 at \$295.00. Total \$354.00

§ 12/15/2023 Draft motion

to compel further responses to special interrogatories TL 2 at \$415.00. Total \$830.00

§ 2/13/2024 Draft

Plaintiff's ex parte application to advance hearing on Plaintiff's motion to compel further responses to special interrogatories. TL 1.2 at \$450.00. Total \$540.00

§ 3/4/2024 Draft

Plaintiff's responses to Defendant's first set of special interrogatories EK 0.7 at \$350.00. Total \$245.00

§ 3/4/2024 Draft

Plaintiff's responses to Defendant's first set of form interrogatories EK 0.5 at \$350.00. Total \$175.00

§ 8/1/2024 Review and

analyze Defendant's opposition to Plaintiff's motion to compel deposition attendance of Defendant's person most qualified and custodian of records; draft reply to Defendant's opposition. TL 1.9 at \$450.00. Total \$855.00

The Court finds Plaintiff's counsel billed an excessive amount of time for the drafting and review of routine and/or templated discovery related documents. Therefore, the Court shall reduce the entries for a total reduction of \$1,639.50.

Travel:

o Plaintiff's counsel billed an excessive amount for travel. Travel costs, unless for an authorized witness, are not recoverable per *Ladas v. California State Automotive Assoc.*(1993) 19 Cal.App.4th 761, 775-76 ["Routine expenses for local travel by attorneys or other firm employees are not reasonably necessary to the conduct of litigation."].) Therefore, the only travel expenses authorized by section 1033.5 are those incurred to attend depositions. (See *Ladas, supra*, 19 Cal.App.4th at 775-76.) The Court finds that the 26.3 hours Plaintiff's counsel billed for travel totaling \$13,860.00 are excessive. Therefore, the Court shall strike the entries for a total of \$13,860.00.

Block-billing:

o Defendant disputes entries totaling 42.5 hours as improperly block-billed. However, the Court finds the entries are not improper block-billing. (*Christian Research Institute v. Alnor* (2008) 165 Cal.App.4th 1315, 1325 [discussing that block billing is not objectionable per se.]) The entries include a description of specific and related tasks. For example:

§ 10/11/2023 Review file

and initial meet and confer letter; finalize second meet and confer letter

regarding Defendant's discovery responses and cover email to Vanessa Dao and Brian Hom, 0.40 at \$415.00. Total \$166.00

§ 7/29/2024 Draft

responsive emails to five emails throughout the day regarding various issues relating to the deposition of Defendant's Person Most Qualified and Custodian of Records, 0.7 at \$450, Total \$315.

§ 12/1/2025 Review case

history, outstanding depositions, and document production to determine any additional motions in limine necessary to file for upcoming trial, 0.4 at \$375.00. Total \$150.00

§ 1/13/2026 Assemble

defense motions in limine; research rules regarding same; correspond with C. Rice regarding same; update trial binder regarding same, 0.9 at \$250.00. Total \$225.00

§ 1/28/2026 Prepare

arguments for trial; review and comment on opening outline; meeting with trial team re opening/plaintiff strategy, 2.4 at \$575.00. Total \$1,380.0

Plaintiff's counsel does not lump together

distinct tasks where the Court is unable to discern whether the time devoted to each service was reasonable. Trial courts retain discretion to penalize block billing when the practice hinders their ability to make these determinations (See *Mountjoy v. Bank of America, N.A.* (2016) 245 Cal.App.4th 266; *Minser v. Collect Access, LLC* (2023) 92 Cal.App.5th 781.)

Therefore, the Court shall make no reduction.

Administrative/ Internal

Communication:

o Defendant

disputes 36.9 hours of Plaintiff's entries, for a total of \$18,073.00, for work that Defendant characterizes as clerical and excessive given "attorney input is not required." (Shah Decl. at Exhibit. 1 rows 11, 20, 30, 36, 39, 53, 56, 60, 69, 70, 73, 80, 87, 90, 91, 116, 121, 123, 144, 145, 147, 154, 155, 157, 158, 159, 160, 161, 162, 166, 168, 171, 177, 185, 188, 196, 200, 201, 206, 208, 212, 214, 217, 219, 220, 221, 222, 223, 230, 231, 235, 241, 248, 295, 299, 317, 327).

The Court finds the challenged entries are not excessive/ duplicative. Each entry constitutes attorney work product that supported Plaintiff's counsel's strategic analysis of the case. It is commonplace for attorneys to conduct strategy meetings, redline exhibit lists, inquire as to the status of motions in limine in preparation for trial, and memorialize case updates such as hearing results regardless of the size of the attorney team. For example:

§ 6/27/2025

Call with C. Rice regarding motions in limine; review file regarding same, 0.2 at \$250. Total \$50.00.

§ 1/5/2026

Enter results from hearing on Defendant's ex parte application to continue trial, 0.1 at \$525. Total \$52.50.

§ 1/5/2026, Review

e-mail from opposing counsel regarding Defendant's redlines to proposed Joint Trial Documents, 0.2 at \$425. Total \$85.00.

§ 1/29/2026

Call with Sundeep Samra re trial strategy, 0.2 at \$575. Total \$115.00.

Therefore,
no reduction shall be made.

Attorney's Fees Motion:

o Plaintiff's counsel

billed 4.4 hours at a rate of \$575 per hour for the underlying fee motion and the supporting documents on 06/26/26 and 6/27/26 for a total of \$2,530, not including 6.5 hours at a rate of \$575 per hour for a total of \$3,737.50 in anticipated time for the review of Defendant's opposition, drafting of a reply and attending hearing. (Kirnos Decl., Exh. A.) Plaintiff is entitled to include the time spent preparing the underlying motion in the ultimate fee award. (See *McKenzie v. Ford Motor Co.* (2015) 238 Cal.App.4th 695, 703, citing *Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1133) ["The fees incurred in preparing a motion for fees are properly includable in the award."] However, here, counsel has billed an unreasonable amount of time in preparing the instant motion. Moreover, counsel has billed an unreasonable amount of time for the review of the opposition, draft of reply, and hearing attendance for a routine motion. Therefore,

the Court will reduce the entry for review of the opposition, drafting a reply, and attending hearing by 3.5 hours at \$575; additionally the Court will reduce the entry for the drafting of the underlying motion by 2 hours at \$575 for a total reduction of \$3,162.50.

Accordingly,
the Court ultimately finds Plaintiff is entitled to \$150,474
in attorney's fees.

I.
Lodestar
Multiplier

In determining an attorney's fees award under the lodestar adjustment method, the trial court is neither foreclosed from, nor required to, award a multiplier. (*Mikhaeilpoor v. BMW of North America, LLC* (2020) 48 Cal.App.5th 240.) Once the touchstone or lodestar figure (reasonable hours multiplied by reasonable rates) is calculated as "the basic fee," "it may be adjusted by the court [by applying a multiplier] based on factors including ..., (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award. The purpose of such adjustment is to fix a fee at the fair market value for the particular action. In effect, the court determines, retrospectively, whether the litigation involved a contingent risk or required extraordinary legal skill justifying augmentation of the unadorned lodestar in order to approximate the fair market rate for such services." (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132.)

Plaintiff seeks a multiplier
for risk and delay given that this lemon law action was taken on a contingency basis. The Court rejects the multiplier request. This lemon law action is not complex as it involved neither novel nor difficult legal issues. The purpose of the multiplier adjustment is to fix a fee at the fair market value for the particular action. Accordingly, applying a multiplier would contravene its purpose. Plaintiff's request for a lodestar multiplier is DENIED.

Accordingly, the motion is
GRANTED in part. Plaintiff is entitled to recover \$150,474 in attorney's fees.